

25STCV33770 25STCV33770

County: los-angeles

Division: Civil Law and Motion

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Motion: DEFENDANT MOUSSA MOSHFEGH'S MOTION FOR JUDGMENT ON THE PLEADINGS

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Case Number: 25STCV33770 Hearing Date: September 9, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

REYNA MARCELA GARCIA,

Plaintiff,

vs.

AHMC GREATER EL MONTE COMMUNITY HOSPITAL LP, a California corporation;

MOUSSA MOSHFEGH, an individual; and DOES 1 through 100, inclusive,

Defendants.

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CASE

NO.: 25STCV33770

[TENTATIVE] ORDER RE: DEFENDANT

MOUSSA MOSHFEGH'S MOTION FOR JUDGMENT ON THE PLEADINGS

Dept. 733

8:30 a.m.

September 9, 2026

I.

INTRODUCTION

This is FEHA

discrimination and harassment action.

On November 19,

2025, Plaintiff Reyna Marcela Garcia ("Plaintiff") filed a complaint

against Defendants AHMC Greater El

Monte Community Hospital LP ("AHMC") and Moussa Moshfegh ("Moshfegh")

("Defendants"), alleging causes of action for (1) Constructive Termination, (2)

Gender Discrimination, (3) Work Environment Harassment, (4) Hostile Work

Environment, and (5) Failure to Prevent Harassment, Discrimination and

Retaliation.

On

March 16, 2026, Moshfegh filed the instant motion for judgment on the pleadings

(MJOP).

On

August 26, 2026, Plaintiff filed an opposition.

On

September 1, 2026, Moshfegh filed a reply.

II.

LEGAL STANDARD

A motion for

judgment on the pleadings is the functional equivalent to a general demurrer. (*Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am.* (1996) 44 Cal.App.4th 194, 198). Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994). Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-22). The parties' ability to prove their respective claims is of no concern. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 99.) Though the Court must accept the allegations of the complaint and answer as true (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts..." (*Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc.* (2006) 138 Cal.App.4th 1215, 1219-20.)

III.

DISCUSSION

Moshfegh move for

judgment on the pleadings as all causes of action alleged against him

in the complaint, Work Environment

Harassment and Hostile Work Environment, on the grounds that Plaintiff has not sufficiently alleged that Moshfegh was Plaintiff's employer or that Moshfegh was AHMC's employee.

FEHA forbids employers from harassing employees

because of “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation,” and other protected classifications. (Gov. Code, § 12940, subd. (j)(1).)

To establish a prima facie case of harassment, a plaintiff must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (Thompson v. City of Monrovia (2010) 186 Cal.App.4th 860, 876 (Thompson); see also Galvan v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 549, 563.)

Here, Plaintiff alleges that she was hired by AHMC on March 18, 2022 as a registered nurse. (Compl., ¶ 9; id. ¶ 42 [“Plaintiff was an employee of Defendant AHMC”].) Plaintiff also alleges that she reported an incident regarding Moshfegh to the circulating nurse and anesthesiologist. (Id. ¶ 27.) Plaintiff then reported Moshfegh to the management portal after which she was contacted by HR who informed that there was to be an investigation. (Id. ¶ 29.) “During the investigation, however, [] Moshfegh continued to work at AHMC without any interruption to his employment.” (Id. ¶ 30.) “After the investigation there was no suspension, discipline or repercussion for [] Moshfegh as he continued to work at AHMC.” (Id. ¶ 32.) “[Plaintiff] a union grievance and requested from [HR] a copy of the investigation report and findings to which she was denied.” (Id. ¶ 33.) Plaintiff “thereafter resigned effective January 5, 2024 due to intolerable conditions at AHMC and their failure to protect their women employees from the unwanted touching and harassment by [] Moshfegh.” (Id. ¶ 39.)

As stated above, “[i]t is an unlawful employment practice for an employer to ‘harass’ an employee based on membership in a protected class” (Bailey v. San Francisco District Attorney’s Office (2024) 16 Cal.5th 611, 626 (emphasis added); see also Martinez v. Combs (2010) 49 Cal. 4th 35, 50 [observing that it “seems logically inevitable . . . [that] only an employer can be liable” for Labor Code violations].) But also, individual supervisors, who are not themselves employers, can be liable for FEHA harassment. (See Reno v. Baird (1998) 18

Cal.4th 640, 646 [“Discrimination claims, by contrast, arise out of the performance of necessary personnel management duties. While harassment is not a type of conduct necessary to personnel management, making decisions is a type of conduct essential to personnel management. While it is possible to avoid making personnel decisions on a prohibited discriminatory basis, it is not possible either to avoid making personnel decisions or to prevent the claim that those decisions were discriminatory.”].)

Specifically

in addressing any potential employer-employee relationship between both Plaintiff and Moshfegh and Moshfegh and AHMC for purposes of establishing a supervisory relationship over Plaintiff, “[w]e glean no magic formula for determining whether the requisite employment relationship exists. The prevailing view is to consider the totality of the circumstances, reflecting upon the nature of the work relationship between the parties, and placing emphasis on the control exercised by the employer over the employee’s performance of employment duties. Consequently, when a statute fails to define the term ‘employee,’ courts routinely look at the common-law definition for guidance, focusing on the amount of control the employer exercises over the employee.” (Bradley v. Dep’t of Corr. & Rehab. (2008) 158 Cal.App.4th 1612, 1626.) FEHA requires ‘some connection with an employment relationship,’ although the connection ‘need not necessarily be direct.’” (Vernon v. State of California (2004) 116 Cal.App.4th 114, 123 (citation omitted).)

Here, there is a complete lack of any factual allegations that would support whether AHMC employed Moshfegh or whether Moshfegh employed Plaintiff. For example, Plaintiff has not alleged “[1] payment of salary or other employment benefits and Social Security taxes, [2] the ownership of the equipment necessary to performance of the job, [3] the location where the work is performed, the obligation of the defendant to train the employee, [4] the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, [5] the authority to establish work schedules and assignments, [6] the defendant’s discretion to determine the amount of compensation earned by the employee, [7] the skill required of the work performed and the extent to which it is done under the direction of a supervisor, [8] whether the work is part of the defendant’s regular business operations, [9] the skill required in the particular occupation, [10] the duration of the relationship of the parties, and [11] the duration of the

plaintiff's employment. (Vernon, *supra*, 116 Cal.App.4th. at p. 124 [requiring facts "indicating the existence of an employment relationship"].) There are no allegations concerning the "right to control" Plaintiff's or Moshfegh's work performance by Moshfegh or AHMC respectively. (Id. at p. 126 ["Of these factors, the extent of the defendant's right to control the means and manner of the workers' performance is the most important."] (citation omitted); see also *Mendoza v. Town of Ross* (2005) 128 Cal.App.4th 625, 637 [there "is nothing within the FEHA or its legislative history evincing an intent to depart from the requirement that compensation of some sort is indispensable to the formation of an employment relationship."].)

In fact, *Talley v. Cnty. of Fresno* (2020) 51 Cal.App.5th 1060, 1083 concluded that an individual "cannot be deemed an employee within the meaning of the FEHA absent the existence of remuneration. The existence of remuneration alone does not prove an individual is an employee under the statute, but the lack of remuneration precludes such a finding." Plaintiff here has failed to allege any facts supporting the existence of any financial remuneration to establish an employment relationship between Plaintiff and Moshfegh and Moshfegh and AHMC.

Moreover, in *Payne v. Anaheim Mem'l Med. Ctr., Inc.*, while in the context of an Unruh Civil Rights Act claim alleged by a physician against a hospital where he had staff privileges, the court also noted that the hospital "does not even suggest the relationship might be one of employer and employee, which would be governed by the FEHA" as the physician "does not work for the hospital, and has no obligation to treat his patients there as opposed to any other hospital. [The hospital] does not compensate [the physician] for his medical services, nor does it exercise any direct control over the manner in which he practices. Instead, the hospital merely provides a facility which a qualified physician may access in connection with providing medical care to his patients." (*Payne v. Anaheim Mem'l Med. Ctr., Inc.* (2005) 130 Cal.App.4th 729, 748.)

The MJOP
to the third cause of action is granted.

Given that
Plaintiff has insufficiently alleged an employment relationship between herself and Moshfegh, Plaintiff does not have a claim for Hostile Work Environment. "For [hostile work environment] sexual

harassment to be actionable, it must be sufficiently severe or pervasive 'to alter the conditions of [the victim's] employment and create an abusive working environment.' " (Fisher v. San Pedro Peninsula Hosp. (1989) 214 Cal.App.3d 590, 609.)

The MJOP is granted in its entirety.

IV.

CONCLUSION

Based on the foregoing, Moshfegh's MJOP is GRANTED in its entirety with thirty (30)

days leave to amend.

Dated this 9th
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court